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The State Secretary for Health, Welfare and Sport
 P.O. Box 20350
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Date

June 6, 2023

Our reference

z2023-02310

Your letter dated

April 14, 2023

Contact person

Your reference

3574219-1046362-J

Subject

Advice on the amendment of the Youth Act Decision in relation to the Act on the Legal Position of Closed Youth Care

Dear Mr. Van Ooijen,

In a letter dated April 14, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for the Decision of [date] amending the Youth Act Decision concerning further rules on physical and social safety in closed facilities, the manner in which and the conditions under which restrictive measures on freedom may be applied in closed facilities, as well as regarding the right to complain about restrictive measures on freedom (hereinafter: the draft).

The AP has a number of comments on the draft and advises that these be taken into account.

Scope of the draft

The draft is based, insofar as relevant to this advice, on a delegation provision in the legislative proposal for the Act on the Legal Position of Closed Youth Care. This legislative proposal concerns, among other things, the application of restrictive measures on freedom concerning a minor who resides in a closed facility.¹ The legislative proposal stipulates that further rules will be established by general administrative regulation regarding the manner in which and the conditions under which restrictive measures on freedom may be applied.²

The draft formulates, insofar as it concerns the processing of personal data, further rules for the exercise of video surveillance on a minor.³ The draft stipulates, among other things, that the youth care provider must inform the minor about the video surveillance,⁴ that video surveillance is not permitted in certain areas⁵ and that the footage is, in principle, not retained for longer than four weeks.⁶

In addition, the draft contains further rules regarding the testing of a minor's urine.⁷ The draft briefly states that the urine will be tested in a laboratory within 10 days solely for the presence of behavior-altering substances, that the laboratory will inform the youth care provider of the results, and that the youth care provider will inform the minor of the results.

Advice

Access to video footage

Regarding access to the video footage, the draft states: "The youth care provider ensures that persons

not involved in the provision of youth care to a minor do not have access to video footage of that minor.”⁸ However, the draft and the explanation do not clarify under what circumstances persons who are involved in the provision of youth care to the minor have access to the video footage of that minor. Furthermore, it is not clear from the draft and the explanation whether, and if so in what cases, the Health and Youth Inspectorate (IGJ) will have access to the video footage.⁹

The AP advises to specify under what circumstances the involved youth care providers have access to the video footage and whether, and if so in what cases, the IGJ will have access to the footage.

Name on urine container

The draft stipulates that when testing urine, a registration number or the name of the minor will be placed on the urine container.¹⁰ It has not been demonstrated that it is relevant for the laboratory to know which person is involved. The possibility of placing the name of the minor on the urine container may therefore lead to a more extensive processing of personal data than necessary.

The AP advises to determine that only a registration number is placed on the urine container.

Retention period for the laboratory

4 Article 6.2.1, second paragraph, of the draft.

5 Article 6.2.1, third and fourth paragraphs, of the draft. Video surveillance is generally not permitted in the minor's room, in a separate and secure space as referred to in Article 6.2.6, second paragraph, of the Youth Act, and during a confinement as referred to in Article 6.3.2.2, first paragraph, subparagraph f of the Youth Act. An exception applies if the youth care provider has a justified concern that the minor will harm themselves during their stay in that space. Furthermore, video surveillance is not permitted in sanitary facilities.

6 Article 6.2.2, second paragraph, of the draft. An exception applies in the event of an incident or calamity (see Article 6.2.2, third paragraph, of the draft). On p. 8 of the explanatory memorandum, it is stated that the four-week retention period corresponds to the period that the AP advises in the context of video surveillance in care institutions in general. Reference is made to <https://www.autoriteitpersoon.sgegevens.nl/nl/onderwerpen/cameratoezicht/cameratoezicht-een-zorginstelling>.

7 Articles 6.2.10 and 6.2.11 of the draft.

8 Article 6.2.2, first paragraph, of the draft.

9 This is only addressed in the (non-public) data protection impact assessment (on pp. 10, 13, 14, and 17).

10 Article 6.2.10, first paragraph, of the draft.

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3/3

The draft does not specify whether, and at what moment, the laboratory must remove the results of the urine examination and destroy the examined material. The AP considers it desirable, from the perspective of transparency and legal certainty, to establish a maximum retention period.

The AP advises that the draft should specify whether, and at what moment, the laboratory must remove the results of the urine examination and destroy the examined material.

Workload

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure of the advice

The AP intends to make this advice public no earlier than four weeks after the date on the website www.autoriteitpersoon.sgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,

Authority Personal Data,

Aleid Wolfsen

Chairman